

		award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. (Code Civ. Proc., § 1021.5.) Here, the important right affecting the public interest was obtained before this writ was filed. In contemplation of such a success under the CVRA, the legislature provided that the party responsible could be awarded up to \$30,000.00 (adjusted for inflation) as compensation for fees incurred in enforcing the important right. The writ filed by Petitioner here had no bearing on the issue of whether the City would convert its “at large” voting system to a district based election system. That task was accomplished after petitioner served her initial demand letter but before the Petition was filed. The Petition here sought only to compel the City to pay what was owed to Petitioner, though Petitioner had not yet provided the requested documentation to corroborate the claimed costs. Thus, Petitioner was not a “successful party” under Section 1021.5 and the filing of the petition for writ did not confer an important public benefit. And while Petitioner appears entitled to the statutory fees under Section 10010, it appears that she has already received such fees. Accordingly, the motion is DENIED. Respondent to give notice.
13	Cannon vs. Crown Point Condos No. 2	<u>Motion for Preliminary Injunction</u> No Tentative.

15	Quaid vs. Orange County Fire Authority	<u>Demurrer (re First Amended Answer)</u> The court SUSTAINS, with 15 days leave to amend, Plaintiff CATHERINE QUAID’s unopposed demurrer to the following affirmative defenses in the First Amended Answer (FAA) filed by Defendant/Cross-Defendant BRIGHTVIEW LANDSCAPE SERVICES, INC. (Doe 30) (“Defendant Brightview”): 7th, 8th, 13th, 21st, and 24th affirmative defenses. 6th A/D (estoppel) In one paragraph, the sixth affirmative defense states that “plaintiff is barred from recovery by the equitable doctrine of estoppel because she already filed a claim with the appropriate government entities.” The elements of the affirmative defense for equitable estoppel are: (i) the plaintiff was apprised of the facts; (ii) that the plaintiff: (a) intended that the conduct be acted upon, or (b) acted such that defendant had a right to believe it was intended; (iii) the defendant was ignorant of the true facts; and (iv) the defendant relied upon the conduct to the party’s injury. (<i>Sofranek v. Merced County</i> (2007) 146 Cal.App.4th 1238, 1250.) The FAA does not state sufficient facts to support a defense for estoppel. The FAA alleges no interaction between these two parties prior to the alleged incident to support a defense of estoppel. As such, the demurrer to the sixth affirmative defense is SUSTAINED. 7th A/D (unclean hands) The seventh affirmative defense states that “plaintiff is barred from recovery by the equitable doctrine of unclean hands because this answering defendant is unsure if Plaintiff contributed to the occurrence of the alleged slip and fall.” The doctrine of unclean hands bars recovery when the plaintiff has violated conscience, good faith, or other
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